

Chief Justice's Court

Case :- WRIT - C No. - 23723 of 2017

Petitioner :- Jaya Kumari

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mithilesh Kumar Srivastav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Manoj Kumar Gupta,J.

Heard Mr. Mithilesh Kumar Srivastava, learned counsel for the petitioner and Mr. Narendra Kumar Tiwari, learned counsel for the respondents.

Counsel for the respondents, at the outset, invited our attention to Section 6.5 of the Electricity Supply Code, 2005 and submits that the petitioner has a remedy to raise dispute regarding her electricity bill before respondent no.2. Counsel for the petitioner submits that the petitioner has already made representations to respondent no.2. In view thereof, we direct respondent no.2 to treat petitioner's representations dated 18.02.2013, 18.05.2015 and 15.05.2017 (Annexure-4) as application under Section 6.5 of the Code and consider and decide the same on merits, in accordance with law, as expeditiously as possible and preferably within a period of four weeks from the date of receipt of this order. Petitioner is directed to produce a copy of this order alongwith a copy of the writ petition and its annexures before respondent no.2 within a period of ten days from today.

While passing this order, it is made clear that this Court has not examined merits of the case.

The petition is accordingly disposed of.

Order Date :- 26.5.2017

AHA

(M K Gupta, J) (Dilip B Bhosale, CJ)